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CASE #	CASE NAME	HEARING NAME
CVRI2600209	VILLARREAL vs HUMANO LLC	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Appearances requested to discuss the applicability of the FAA, and, if it does not apply, the enforceability of the class waiver.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2405413	NAIDU VS YHODITES & ASSOCIATES MANAGEMENT LLC	MOTION FOR ATTORNEY FEES

Tentative Ruling: Grant. A “prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (C.C.P. §1032(b).) Recoverable costs include “attorney’s fees, when authorized by ... contract, statute, or law.” (C.C.P. § 1033.5(10).) In the present case, Plaintiff accepted Defendant’s 998 Offer, wherein Defendant agreed to pay Plaintiff’s “reasonable attorney’s fees and costs incurred up to the date of this offer.” (Moore Decl., Ex. A.) Defendant does not dispute that Plaintiff is entitled to recover her reasonable attorney’s fees, instead only attacking the reasonableness of Plaintiff’s request.

The matter of reasonableness of a party’s attorney’s fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) “A trial court may not rubberstamp a request for attorney fees, but must determine the number of hours reasonably expended.” (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 38.) The court must determine whether the amount requested is reasonable based on the circumstances of the case, including factors such as the complexity of the case, procedural demands, skill exhibited, and results achieved, and the court may reduce the amount if it is determined to be unreasonable. (*Goglin v. BMW of North America* (2016) 4 Cal.App.5th 463, 470; see also, *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1096 [factors considered in determining the reasonableness of a party’s attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure].)

In determining the reasonable amount of attorney fees, the court first determines a lodestar figure. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242; see also, *Serrano v. Priest* (1977) 20 Cal.3d 25, 48.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Ibid*; see also, *Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.) The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The experienced trial judge is the best judge of the value of professional services rendered in his or her court and may make his or her own determination of the value of the services contrary to, or without the necessity for, expert testimony. (*Id.* at 1096.) The prevailing party has the initial burden of showing the fees incurred were allowable and reasonably necessary to the conduct of the litigation. (*Goglin, supra*, 4 Cal. App. 5th at 470.) Once the initial burden is met, the burden of proof is on

the opposing party to show by admissible evidence that the fees requested were unreasonable, either by the number of hours, the hourly rate, or both. (*Maughan v. Google Technology* (2006) 143 Cal. App. 4th 1242, 1261.)

Naidu's counsel's billing records indicate a lodestar figure of \$35,547.50, based on 51.6 hours worked. Hourly rates are stated as: Scott M. Lidman, \$900/hour; Paul K. Haines, \$850/hour; Milan Moore, \$650/hour; and paralegals, \$175/hour. Yodites & Associates object that the rates are unreasonably high. The Court may use its own experience in determining the reasonableness of the requested rates. *EnPalm, LLC v. Teitler* (2008) 162 Cal.App.4th 770, 774. In addition, Yodites & Associates objects to billing of conferences between counsel, that the fees are unreasonable given the "limited nature of the litigation," the "limited results obtained," and that significant time was devoted to claims that Naidu allegedly admitted were factually unsupported.

Yodites & Associates submitted limited evidentiary objections to the declaration of Milan Moore and to statements in the moving memorandum of points and authorities. As to the latter, briefs are not evidence, so the objection is overruled. As to the former, the objections are overruled—of course, the Court makes the final determination of what is reasonable or whether the case was "uncertain or risky" but it is not inappropriate for counsel to offer evidence on those issues and the Laffey Matrix is of some relevance in determining the reasonableness of the requested fees.

This court has the benefit of considering scores of cases in which claims similar to those made here are asserted and in which motions for approval of class or PAGA settlements are often made. These motions include an assessment of what attorney fees are reasonable. The requested hourly rates are reasonable, as is the practice of billing for conferences between attorneys. As noted in the reply, most of the work was performed by the lowest billing attorney. The limited nature of the litigation is reflected in the fact that Naidu seeks fees for only slightly more than 50 hours of attorney time. It is difficult to obtain a settlement for less than this amount of attorney time. Further, it is difficult to determine that any of the time was spent only on claims that were unsupported; moreover the settlement included a general release, which obviously covers claims that were not even made.

Thus, the Court finds that the hours and hourly rates are reasonable. However, there does not appear to be a justification for a multiplier. Accordingly, the fees awarded are \$35,547.50.

Costs of \$3,339.12 are awarded. A memorandum of costs was filed, attesting to this amount, all of the costs appear to be proper and Yodites & Associates does not contest any of the amount.